

# SENATE . . . . . No. 2749

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Senate, November 19, 2025 -- Text of the Senate amendment to the House Bill modernizing the commonwealth's cannabis laws (being the text of Senate document numbered 2722, printed as amended)

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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1           SECTION 1. Chapter 6 of the General Laws is hereby amended by adding the following  
2 section:-

3           Section 223. (a) There shall be a Massachusetts cannabis control commission, which shall  
4 consist of 2 commissioners appointed by the governor, 1 of whom the governor shall designate  
5 as chair, and 1 commissioner appointed by the attorney general. The commissioners shall devote  
6 their full time and attention to the duties of the office. The governor shall appoint commissioners  
7 with experience or expertise in any of the following areas: public health, public safety, the  
8 regulation and business of consumer commodities or the production and distribution of  
9 marijuana and marijuana products. The attorney general shall appoint a commissioner with a  
10 background in social justice issues related to the cannabis industry. Prior to appointment to the  
11 commission, a background investigation shall be conducted into the financial stability, integrity,  
12 potential conflicts of interest and responsibility of a candidate, including the candidate's  
13 reputation for good character and honesty. No person convicted of a felony shall be eligible to  
14 serve on the commission.

(b) Each commissioner shall be a resident of the commonwealth within 90 days of appointment and, while serving on the commission, shall not: (i) hold, or be a candidate for, federal, state or local elected office; (ii) hold an appointed office in a federal, state or local government; or (iii) serve as an official in a political party. Not more than 2 commissioners shall be from the same political party.

(c) The commissioner designated by the governor as chair shall serve a term coterminous with the governor. The 2 remaining commissioners shall each serve for a term of 4 years or until a successor is appointed. Each commissioner shall be eligible for reappointment. A person appointed to fill a vacancy during the term of a commissioner shall be appointed in the manner provided under this section and shall serve for the unexpired term of that commissioner.

(d) Each commissioner shall serve at the pleasure of the appointing authority.

(e) Two commissioners shall constitute a quorum and the affirmative vote of 2 commissioners shall be required for an action of the commission. The chair or 2 commissioners may call a meeting; provided, however, that notice of all meetings shall be given to each commissioner and to other persons who request such notice. The commission shall adopt regulations establishing procedures, which may include electronic communications, by which a request to receive notice shall be made and the method by which timely notice may be given.

(f) The chair shall receive a salary equal to the salary of the secretary of administration and finance under section 4 of chapter 7. The 2 remaining commissioners shall receive a salary equal to 75 per cent of the salary of the secretary of administration and finance under said section 4 of said chapter 7.

(g)(1) The chair shall preside at all meetings or hearings at which the chair is present and shall designate a commissioner to act as chair in the chair's absence. The chair may, as necessary, assign or reassign responsibilities among the commissioners to ensure the efficient administration of the commission

(2) The chair and commissioners shall not participate in or supervise any investigation, inspection, audit, enforcement action or other fact-gathering activity that may be subject to adjudication before the commission.

(3) Nothing in this subsection shall be construed to impair the obligation of the chair or any commissioner to act impartially in any adjudicatory proceeding conducted pursuant to chapter 30A.

(4) When presiding over or participating in an adjudicatory proceeding, the chair shall be subject to all duties, standards and prohibitions applicable to presiding officers pursuant to chapter 30A.

(h) The commissioners shall, if so directed by the chair, participate in the hearing and decision of any matter before the commission. Any matter may be heard, examined and investigated by an employee of the commission designated and assigned by the chair, with the concurrence of 1 other commissioner; provided, however, that s an employee assigned to a matter shall make a report in writing relative to the hearing, examination and investigation of every such matter to the commission. For each hearing, the concurrence of a majority of the commissioners participating in the decision shall be necessary.

(i)(1) The chair, in consultation with the commission, shall appoint an executive director, who shall devote their full-time duties to the office and shall serve at the pleasure of the chair

and under the supervision and direction of the chair. The salary of the executive director shall be determined by the chair after consultation with the commission.

(2) The executive director shall be the chief administrative officer of the commission and shall exercise independent authority over enforcement and the operational units of the commission. Such authority shall be exercised independently of the commissioners, including the chair, who shall not participate in any fact-finding, investigative or enforcement actions that may become the subject of an adjudicatory proceeding under chapter 30A.

(3) The executive director shall direct the implementation of the commission's policies and shall have final authority, subject to applicable law and regulations, over personnel management and internal administrative matters.

(4) The executive director shall, subject to appropriation and consistent with the personnel and budget policies adopted by the commissioners, appoint and employ a chief financial and accounting officer and may appoint other officers, employees, consultants, agents and legal counsel as may be necessary to carry out the duties of the commission. No funds shall be transferred or expended by the commission without the approval of the chair or executive director and the authorization of the chief financial and accounting officer consistent with financial control policies.

(5) In the event of an absence or vacancy in the office of the executive director or in the case of disability, as determined by the chair, the chair shall designate an acting executive director who shall perform the duties of the office until such vacancy, absence or disability ceases.

(j) Chapters 268A and 268B shall apply to all commissioners and employees of the commission; provided, however, that the commission shall establish a code of ethics for all commissioners and employees consistent with said chapters 268A and 268B, which shall be filed with the state ethics commission. The code shall include provisions reasonably necessary to carry out the purposes of this section and any other laws subject to the jurisdiction of the commission, including, but not limited to: (i) prohibiting the receipt of gifts by commissioners and employees from any marijuana licensee, applicant, close associate, affiliate or other person or entity subject to the jurisdiction of the commission; (ii) prohibiting the participation by commissioners and employees in a particular matter as defined in section 1 of said chapter 268A that affects the financial interest of a relative within the third degree of consanguinity or a person with whom such commissioner or employee has a significant relationship, as defined in the code; and (iii) providing for recusal of a commissioner in a licensing decision or any matter in which a commissioner may serve in an adjudicatory capacity due to a potential conflict of interest.

(k)(1) No commissioner, including the chair, shall initiate, participate in or knowingly receive any communication concerning the substance of any investigation, enforcement matter or adjudicatory proceeding, except as part of the official record of a proceeding conducted in accordance with chapter 30A.

(2) This subsection shall not preclude the commission from receiving periodic reports regarding the overall administration or performance of the enforcement division or from receiving complaints or information regarding the quality, efficiency or integrity of the commission's programs and operations; provided, however, that such reports shall not include information relating to any specific matter that may reasonably be expected to come before the commission in an adjudicatory capacity.

(3) A commissioner who violates this subsection shall be disqualified from participating in any proceeding related to the subject matter of the prohibited information and may be subject to further action as provided by law.

(l) The commission shall be a commission for the purposes of section 3 of chapter 12.

(m) The commission shall, for the purposes of compliance with state finance law, operate as a state agency as defined in section 1 of chapter 29 and shall be subject to the laws applicable to agencies under the control of the governor; provided, however, that the comptroller may identify any additional instructions or actions necessary for the commission to manage fiscal operations in the state accounting system and meet statewide and other governmental accounting and audit standards. The commission shall properly classify the commission's operating and capital expenditures and shall not include any salaries of employees in the commission's capital expenditures. Unless otherwise exempted by law or the applicable central service agency, the commission shall participate in any other available commonwealth central services, including, but not limited to, the state payroll system pursuant to section 31 of said chapter 29, and may purchase other goods and services provided by state agencies in accordance with comptroller provisions. The comptroller may chargeback the commission for the transition and ongoing costs for participation in the state accounting and payroll systems and may retain and expend such costs without further appropriation for the purposes of this section. The commission shall be subject to section 5D and subsection (f) of section 6B of said chapter 29.

SECTION 2. Sections 76 and 77 of chapter 10 of the General Laws are hereby repealed.

SECTION 3. Paragraph (4) of subsection (d) of section 2 of chapter 62 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 412

and 413, the words “medical marijuana treatment center” and inserting in place thereof the following words:- medical marijuana establishment.

SECTION 4. Section 30 of chapter 63 of the General Laws, as so appearing, is hereby amended by striking out, in line 61, the words “medical marijuana treatment center” and inserting in place thereof the following words:- medical marijuana establishment.

SECTION 5. Section 4 of chapter 64N of the General Laws, as so appearing, is hereby amended by striking out, in lines 2 and 3, the words “medical marijuana treatment center” and inserting in place thereof the following words:- medical marijuana establishment.

SECTION 6. Section 32L of chapter 94C of the General Laws, as so appearing, is hereby amended by striking out, in lines 2, 23, 25, 30, 35, 36 and 45, the figure “2” and inserting in place thereof, in each instance, the following figure:- 3.

SECTION 7. Section 32M of said chapter 94C, as so appearing, is hereby amended by striking out, in line 3, the figure “2” and inserting in place thereof the following figure:- 3.

SECTION 8. Section 34 of said chapter 94C, as so appearing, is hereby amended by striking out, in line 18, the words “one ounce of marihuana” and inserting in place thereof the following words:- 2 ounces of marihuana.

SECTION 9. Section 1 of chapter 94G of the General Laws, as so appearing, is hereby amended by striking out the definitions of “Consumer”, “Controlling person” and “Commission” and inserting in place thereof the following 3 definitions:-

“Commission”, the Massachusetts cannabis control commission established in section 223 of chapter 6.

145 “Consumer”, a person who is at least 21 years of age.

146 “Controlling person”, an officer, board member or other individual who has a financial or  
147 voting interest of 10 per cent or greater in a marijuana establishment.

148 SECTION 10. Said section 1 of said chapter 94G, as so appearing, is hereby further  
149 amended by striking out the definitions of “Host community”, “Host community agreement” and  
150 “Independent testing laboratory” and inserting in place thereof the following 3 definitions:-

151 “Host community”, a municipality in which a marijuana establishment or a medical  
152 marijuana establishment is located or in which an applicant has proposed locating a marijuana  
153 establishment or a medical marijuana establishment.

154 “Host community agreement”, an agreement between a marijuana establishment or a  
155 medical marijuana establishment and a municipality pursuant to subsection (d) of section 3.

156 “Independent testing laboratory”, a laboratory that is licensed by the commission and is:

157 (i) accredited to the most current International Organization for Standardization 17025 by a  
158 third-party accrediting body that is a signatory to the International Laboratory Accreditation  
159 Cooperation mutual recognition arrangement or that is otherwise approved by the commission;  
160 (ii) independent financially from any medical marijuana establishment or any licensee or  
161 marijuana establishment for which it conducts a test; and (iii) qualified to test marijuana in  
162 compliance with regulations promulgated by the commission pursuant to this chapter.

163 SECTION 11. Said section 1 of said chapter 94G, as so appearing, is hereby further  
164 amended by striking out the definition of “Medical marijuana treatment center” and inserting in  
165 place thereof the following definition:-



“Medical marijuana establishment”, as defined in section 1 of chapter 94I.

SECTION 12. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by striking out the definition of “Social equity business” and inserting in place thereof the following definition:

“Social equity business”, a marijuana establishment or medical marijuana establishment with not less than 51 per cent majority ownership of individuals who are eligible for the social equity program under section 22 or whose ownership qualifies it as an economic empowerment priority applicant as defined by the commission’s regulations promulgated pursuant to section 4.

SECTION 13. Section 3 of said chapter 94G, as so appearing, is hereby amended by striking out, in lines 10, 98 and 99, 103, 106, 111 and 112, 114 and 115, 117, 120 and 121, 127, 130 and 131, 135 and 136, 139 and 140, 147, 150 and 151, 156, 162 and 163, 177 and 178 and 190, the words “medical marijuana treatment center” and inserting in place thereof, in each instance, the following words:- medical marijuana establishment.

SECTION 14. Said section 3 of said chapter 94G, as so appearing, is hereby further amended by striking out, in lines 31 and 223, the words “medical marijuana treatment centers” and inserting in place thereof, in each instance, the following words:- medical marijuana establishments.

SECTION 15. Said section 3 of said chapter 94G, as so appearing, is hereby further amended by striking out, in lines 118 and 119, the words “medical marijuana treatment center’s” and inserting in place thereof the following words:- medical marijuana establishment’s.

186           SECTION 16. Section 4 of said chapter 94G, as so appearing, is hereby amended by  
187 striking out, in line 5, the words “officers and hire employees” and inserting in place thereof the  
188 following words:- “an executive director”.

189           SECTION 17. Subsection (a) of said section 4 of said chapter 94G, as so appearing, is  
190 hereby amended by striking out clauses (xv) and (xvi).

191           SECTION 18. Said subsection (a) of said section 4 of said chapter 94G, as so appearing,  
192 is hereby further amended by striking out clauses (xxxii) and (xxxiii) and inserting in place thereof  
193 the following 3 clauses:-

194           (xxxi) establish procedures and policies for municipalities to promote and encourage full  
195 participation in the regulated marijuana industry during negotiations of host community  
196 agreements with social equity program businesses and economic empowerment priority  
197 applicants;

198           (xxxii) develop a model host community agreement, minimum acceptable standards and  
199 best practices for municipalities and prospective licensees during negotiations of host community  
200 agreements with social equity businesses; and

201           (xxxiii) limit the total number of licenses available under this chapter and chapter 94I.

202           SECTION 19. Said section 4 of said chapter 94G, as so appearing, is hereby further  
203 amended by striking out, in lines 169 and 170, 355, 356 and 357, the words “medical marijuana  
204 treatment center” and inserting in place thereof, in each instance, the following words:- medical  
205 marijuana establishment.

206           SECTION 20. Said section 4 of said chapter 94G, as so appearing, is hereby further  
207   amended by inserting after the word “marijuana”, in line 267, the following words:- ; provided,  
208   however, that the commission may permit advertising, marketing and branding of sales,  
209   discounts and customer loyalty programs within a marijuana establishment or through an opt-in  
210   email list.

211           SECTION 21. Said section 4 of said chapter 94G, as so appearing, is hereby further  
212   amended by inserting after the word “commission”, in lines 290 and 291, the following words:- ,  
213   including, but not limited to, procedures and requirements to enable the sale of a marijuana  
214   establishment or medical marijuana establishment to a licensee’s employees through an  
215   employee stock ownership plan as defined in section 407(D)(6)(A) of the Employee Retirement  
216   Income Security Act of 1974, codified at 29 U.S.C. 1107(d)(5).

217           SECTION 22. Said section 4 of said chapter 94G, as so appearing, is hereby further  
218   amended by striking out, in lines 313 and 314 and 361 and 362, the words “medical marijuana  
219   treatment centers” and inserting in place thereof, in each instance, the following words:- medical  
220   marijuana establishments.

221           SECTION 23. Clause (1) of subsection (b) of said section 4 of said chapter 94G, as so  
222   appearing, is hereby amended by adding the following words:- ; provided, however, that limited  
223   delivery of marijuana or marijuana products to consumers shall be allowed in any municipality in  
224   the commonwealth; provided further, that notwithstanding this paragraph, a municipality that  
225   does not authorize retail marijuana establishment licenses within its limits may request, and the  
226   commission shall grant, a waiver from this requirement and may prohibit delivery of marijuana  
227   or marijuana products in said municipality; and provided further, that said waiver shall be valid

for not more than 2 years and may be extended in 2-year increments upon request, at the commission's discretion.

SECTION 24. Said section 4 of said chapter 94G, as so appearing, is hereby further amended by striking out, in lines 386 and 387, the words "the treasurer and receiver-general,".

SECTION 25. Said section 4 of said chapter 94G, as so appearing, is hereby further amended by adding the following 2 subsections:-

(m) The executive director shall conduct investigations into the qualifications of all applicants for employment by the commission and all applicants for licensure.

(n) The executive director shall receive from the state police, the department of criminal justice information services or other agencies, including, but not limited to, the Federal Bureau of Investigation and the United States Internal Revenue Service, such criminal offender record information relating to criminal and background investigations as necessary for the purpose of evaluating licensees, applicants for license, and lab agents as provided in section 21.

SECTION 26. Subsection (a) of section 7 of said chapter 94G, as so appearing, is hereby amended by striking out clause (1) and inserting in place thereof the following clause:-

(1) possessing, using, purchasing, processing or manufacturing marijuana and marijuana products; provided, however, that the total amount in an individual's possession shall be not more than the dry weight equivalency of 2 ounces of marijuana flower or the equivalent for infused products and other formats, as determined by the commission and pursuant to regulations promulgated by the commission under this section.

248           SECTION 27. Said subsection (a) of said section 7 of said chapter 94G, as so appearing,  
249 is hereby further amended by striking out clause (4) and inserting in place thereof the following  
250 clause:-

251           (4) giving away or otherwise transferring without remuneration marijuana or marijuana  
252 products to a person 21 years of age or older; provided, however, that the total quantity  
253 transferred shall not exceed an amount equivalent in dry weight to 2 ounces of marijuana flower,  
254 as determined by the commission; provided further, that such transfer shall not be advertised or  
255 otherwise promoted to the public.

256           SECTION 28. Said section 7 of said chapter 94G, as so appearing, is hereby further  
257 amended by adding the following subsection:-

258           (h) The commission shall promulgate regulations to establish conversion standards for  
259 marijuana concentrates, infused products and other formats to ensure equivalency based on  
260 potency and form for purposes of making calculations under this section.

261           SECTION 29. Section 13 of said chapter 94G, as so appearing, is hereby amended by  
262 striking out, in line 12, the figure “1” and inserting in place thereof the following figure:- 2.

263           SECTION 30. Said section 13 of said chapter 94G, as so appearing, is hereby further  
264 amended by striking out, in line 50, the words “1 ounce but not more than 2” and inserting in  
265 place thereof the following words:- 2 ounces but not more than 3.

266           SECTION 31. Section 14 of said chapter 94G, as so appearing, is hereby amended by  
267 inserting after the word "chapter", in line 12, the following words:- “and chapter 94I”

SECTION 32. Section 14A of said chapter 94G, as so appearing, is hereby amended by striking out, in line 11 and 12, 44 and 73 and 74 the words “executive office of housing and economic development” and inserting in place thereof, in each instance, the following words:- executive office of economic development.

SECTION 33. Said section 14A of said chapter 94G, as so appearing, is hereby further amended by striking out, in lines 50 and 51, the words “medical marijuana treatment centers” and inserting in place thereof the following words:- medical marijuana establishments.

SECTION 34. Subsection (a) of section 15 of said chapter 94G, as so appearing, is hereby by amended by adding the following sentence:- Annually, the commission, in collaboration with independent testing labs and marijuana establishments, shall review and update, where appropriate, regulations and testing protocols to ensure compliance with the most recent industry standards, research and data.

SECTION 35. Said chapter 94G is hereby further amended by striking out section 16, as so appearing, and inserting in place thereof the following section:-

Section 16. (a) No licensee shall be granted more than 4 marijuana retailer licenses, 3 medical marijuana establishment licenses, 3 marijuana product manufacturer licenses or 3 marijuana cultivator licenses; provided, however, that a licensee may hold 4 marijuana retailer licenses, 3 medical marijuana establishment licenses, 3 marijuana product manufacturer licenses and 3 marijuana cultivator licenses; and provided further, that priority consideration shall be given to applications pertaining to social equity businesses, minority business enterprises, women business enterprises or veteran business enterprises.

(b) The limitations of subsection (a) shall not apply to: (i) a person functioning solely as a trustee during or after the sale of a marijuana establishment or medical marijuana establishment to a licensee's employees through an employee stock ownership plan as defined in section 407(d)(6) of the Employee Retirement Income Security Act of 1974, 29 U.S.C. section 1107(d)(6); or (ii) a person or entity that possesses a financial interest in the form of equity in a license of less than 12 per cent.

SECTION 36. Said chapter 94G is hereby further amended by adding the following section:-

Section 23. (a) For the purposes of this section, the word "licensee" shall mean any marijuana establishment licensed pursuant to this chapter, any medical marijuana establishment licensed pursuant to chapter 94I or any other applicable licensee determined by the commission.

(b) It shall be unlawful for any licensee to receive or extend credit, directly or indirectly, for marijuana or marijuana products sold or delivered to any licensee except in the usual course of business and for a period of not more than 60 days. Nothing in this chapter shall require any licensee to extend credit to any other licensee. If any licensee does not discharge in full any such indebtedness within such 60-day period, the indebtedness shall be overdue and such licensee shall be delinquent with respect to such indebtedness. Within 3 days after a licensee becomes delinquent, the licensee that extended the credit shall notify the commission and the delinquent licensee in a manner to be determined by the commission; provided, however, that the notice shall contain the name of the delinquent licensee, the date of delivery of the marijuana or marijuana products and the amount of the indebtedness remaining undischarged. Within 5 days after receipt of such notice, the commission shall review the delinquency notice and, upon

finding it valid, include the name and address only of the delinquent licensee in a delinquent list containing the names and addresses of all delinquent licensees. Such inclusion shall constitute notice to all licensees of the delinquency of such licensee.

(c) If a licensee is seriously damaged in its business by riot, insurrection, civil disturbance, fire, explosion or by an act of God, so-called, the licensee may file an application with the commission requesting that the application of subsection (b) be suspended as to the licensee for a reasonable period. Upon receipt of an application under this subsection, the commission shall set down the application for hearing within 21 days and shall notify all licensees engaged in selling to the applicant of the hearing and give all interested parties the right to be heard. Pending such hearing, the commission may, after an investigation and determination that the facts as stated by the licensee in its application would constitute reasonable grounds for relief, order that such licensee shall not be posted as delinquent. If the commission finds it is in the public interest to do so, it may suspend the application of subsection (b) with respect to the applicant for such period as it may consider to be reasonable and in the public interest. Such action shall not deprive creditors of all legal rights available to them for the collection of the indebtedness and shall be contingent on such terms and conditions as the commission shall determine.

(d) No licensee shall sell or deliver, directly or indirectly, marijuana or marijuana products to a licensee whose name is posted on the delinquent list, except upon full payment of indebtedness made on or before delivery by certified funds, electronic funds transfer or other payment method as may be approved by the commission, and no licensee that is posted on the delinquent list shall purchase or accept delivery of any marijuana or marijuana product except upon full payment of indebtedness made by such licensee on or before delivery by certified



funds, electronic funds transfer or other payment method as may be approved by the commission.

(e) Upon full discharge of the indebtedness for which a licensee was posted to the delinquent list, the licensee who filed the notice of delinquency shall, within 24 hours thereafter, notify the commission of the discharge of the indebtedness. The commission shall, within 3 business day after the receipt of such notice, remove the name of the delinquent licensee from the list. The commission shall, by regulations, prescribe how licensees, other than the licensee who filed the notice pursuant to this section and the licensee subject to such notice, shall be notified of the filing of the name of a licensee on the delinquency list and the removal of the name of a delinquent from such list.

(f) The commission shall not authorize a change of ownership or control of a licensee on the delinquent list until all delinquencies are satisfied and the commission has removed the licensee from the delinquent list under this section, except for approval of court-appointed receivers or trustees under a voluntary assignment for the benefit of creditors; provided, however, that prior approval of such assignment shall be obtained from the commission after notice to all creditors has been given and reasonable time allowed for objections by all creditors.

(g) Notwithstanding and in lieu of any other penalty under this chapter, any person who violates this section shall be punished by a fine of not more than \$5,000 per violation.

(h) The posting list shall be available for inspection by any licensee or a duly authorized agent of a licensee only; provided, however, that the commission may allow third party access to the list by its licensing software provider.

SECTION 37. Section 1 of chapter 94I of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Card holder” and inserting in place thereof the following definition:-

“Card holder”, a registered qualifying patient, personal caregiver or agent of a medical marijuana establishment who has been issued and possesses a valid registration card or an individual who possesses a valid patient registration for medical use marijuana issued by a jurisdiction of the United States.

SECTION 38. Said section 1 of said chapter 94I, as so appearing, is hereby further amended by striking out, in line 16, the words “section 76 of chapter 10” and inserting in place thereof the following words:- section 223 of chapter 6.

SECTION 39. Said section 1 of said chapter 94I, as so appearing, is hereby further amended by striking out the definition of “Cultivation registration” and inserting in place thereof the following definition:-

“Cultivation registration”, a registration issued to a medical marijuana establishment to grow medical use marijuana under the terms of this chapter or to a qualified patient or personal caregiver.

SECTION 40. Said section 1 of said chapter 94I, as so appearing, is hereby further amended by striking out the definition of “Locked area” and inserting in place thereof the following definition:-

“Locked area”, a closet, room, greenhouse or other indoor or outdoor area equipped with locks or other security devices, accessible only to registered and authorized medical marijuana establishment employees, registered qualifying patients or registered personal caregivers.

SECTION 41. Said section 1 of said chapter 94I, as so appearing, is hereby further amended by striking out the definitions of “Marijuana”, “Medical marijuana treatment center”, “Medical use marijuana”, “Medical use marijuana license” and “Medical use marijuana licensee” and inserting in place thereof the following 4 definitions:-

“Marijuana”, as defined in section 1 of chapter 94G.

“Medical marijuana establishment”, an entity issued any medical use marijuana license by the commission pursuant to this section.

“Medical use marijuana”, marijuana or marijuana accessories sold by a medical marijuana establishment to a card holder for medical use or marijuana or marijuana accessories possessed by a qualifying patient under a cultivation registration.

“Medical use marijuana license”, a license issued by the commission that permits the licensee to operate a medical marijuana establishment.

SECTION 42. Said section 1 of said chapter 94I, as so appearing, is hereby further amended by striking out the definition of “Registration card” and inserting in place thereof the following definition:-

“Registration card”, a personal identification card issued by the commission to a registered qualifying patient, personal caregiver, laboratory agent or agent of a medical marijuana establishment; provided, however, that the registration card shall facilitate verification

of an individual registrant's status, including, but not limited to, verification that: (i) a registered healthcare professional has provided a written or electronic certification to the qualifying patient; (ii) the patient has designated the individual as a personal caregiver; (iii) a laboratory agent has been registered with the commission and is authorized to possess and test marijuana; or (iv) an agent has been registered with the commission and is authorized to work at a medical marijuana establishment. A temporary registration issued to a qualifying patient shall be deemed a registration card.

The registration card shall facilitate identification for the commission and law enforcement of those individuals who are exempt from criminal and civil penalties for conduct pursuant to the medical use of marijuana.

SECTION 43. Said section 1 of said chapter 94I, as so appearing, is hereby further amended by striking out the definition of "Temporary Registration" and inserting in place thereof the following definition:-

"Temporary registration", an interim registration document for patients and their personal caregivers generated automatically upon the commission's receipt of a healthcare professional's electronic certification; provided, however, that the temporary registration document shall constitute a registration card for patients and their personal caregivers to access a medical marijuana establishment; and provided further, that a temporary registration shall expire 14 days after the commission issues the registration card.

SECTION 44. Section 2 of said chapter 94I is hereby amended by striking out subsection (a), as so appearing, and inserting in place thereof the following subsection:-

(a) The commission shall operate a medical use of marijuana program, which shall permit a qualifying patient with a debilitating medical condition to obtain a written or electronic certification from a healthcare professional with whom the patient has a bona fide healthcare professional-patient relationship to purchase medical use marijuana from a medical marijuana establishment. Upon issuance of a written certification from a healthcare professional, the commission shall issue a registration card to the qualifying patient. A medical marijuana establishment licensed and authorized by the commission to deliver, sell or otherwise transfer medical use marijuana to consumers may sell medical use marijuana to a card holder.

SECTION 45. Said section 2 of said chapter 94I, as so appearing, is hereby further amended by striking out, in line 21, the words "qualifying patient or a personal caregiver" and inserting in place thereof the following words:- card holder.

SECTION 46. Said section 2 of said chapter 94I, as so appearing, is hereby further amended by striking out, in lines 33 and 34, the words "qualifying patients or their personal caregivers" and inserting in place thereof the following words:- card holders.

SECTION 47. Said section 2 of said chapter 94I, as so appearing, is hereby further amended by striking out, in lines 42 and 43, the words "qualifying patient or the qualifying patient's personal caregiver" and inserting in place thereof the following words:-card holders.

SECTION 48. Said section 2 of said chapter 94I, as so appearing, is hereby further amended by striking out, in lines 29, 37 and 39, the words "medical marijuana treatment center" and inserting in place thereof, in each instance, the following words:- medical marijuana establishment.

437           SECTION 49. Said section 2 of said chapter 94I, as so appearing, is hereby further  
438 amended by adding the following subsection:-

439           (f) The commission may revoke or suspend a medical use marijuana license of a medical  
440 use marijuana licensee who illegally sells medical use marijuana.

441           SECTION 50. Section 3 of said chapter 94I, as so appearing, is hereby amended by  
442 striking out, in lines 5 and 23 and 24, the words “medical marijuana treatment center” and  
443 inserting in place thereof, in each instance, the following words:- medical marijuana  
444 establishment.

445           SECTION 51. Said section 3 of said chapter 94I, as so appearing, is hereby further  
446 amended by striking out, in lines 10 and 11, the words “medical marijuana treatment centers”  
447 and inserting in place thereof the following words:- medical marijuana establishments.

448           SECTION 52. Said section 3 of said chapter 94I, as so appearing, is hereby further  
449 amended by striking out, in line 16, the words “medical use marijuana licensee or establishment”  
450 and inserting in place thereof the following words:- medical marijuana establishment.

451           SECTION 53. Section 6 of said chapter 94I, as so appearing, is hereby amended by  
452 striking out clauses (ii) and (iii) and inserting in place thereof the following 3 clauses:-

453           (ii) require any healthcare professional to authorize the medical use of marijuana for a  
454 patient;

455           (iii) amend existing penalties for operating, navigating or being in actual physical control  
456 of any motor vehicle, train, aircraft, motorboat or other motorized form of transport or machinery  
457 while impaired by marijuana or a marijuana product; or

(iv) require medical use marijuana licensees to simultaneously cultivate, process and dispense medical use marijuana as a condition of obtaining or maintaining licensure to operate a medical marijuana establishment.

SECTION 54. Section 7 of said chapter 94I, as so appearing, is hereby amended by striking out, in lines 3 and 4, the words “medical marijuana treatment centers” and inserting in place thereof the following words:- medical marijuana establishments, including any classes of license established under this section.

SECTION 55. Said section 7 of said chapter 94I, as so appearing, is hereby further amended by adding the following 3 paragraphs:-

The commission may adopt regulations to: (i) establish and provide for the issuance of additional types or classes of licenses to operate a medical marijuana establishment; and (ii) limit the number of medical marijuana establishment licenses a licensee may be granted.

The commission may establish procedures and policies for municipalities to promote and encourage full participation in the regulated medical marijuana industry during negotiations of host community agreements with social equity program businesses and economic empowerment priority applicants pursuant to clause (xxxix) of subsection (a) of section 4 of chapter 94G.

The commission shall adopt regulations to promote and encourage full participation in the regulated medical marijuana industry by people from communities that have previously been disproportionately harmed by marijuana prohibition and enforcement and to positively impact those communities pursuant to clause (iv) of subsection (a1/2) of said section 4 of said chapter 94G.

SECTION 56. Section 22 of chapter 270 of the General Laws, as so appearing, is hereby amended by striking out, in lines 27 and 28, the words “section 76 of chapter 10” and inserting in place thereof the following words:- section 223 of chapter 6.

SECTION 57. The Massachusetts cannabis control commission shall study and report on mental health outcomes of cannabis use in the commonwealth. The commission shall study: (i) incidents of hospitalization and the use of other health care services related to marijuana use; and (ii) long term mental health impacts of marijuana consumption, including incidents of cannabis-induced psychosis and cannabis-induced psychotic disorders. Based on findings of the study, the commission shall report on the: (i) scientific evidence regarding marijuana use and adverse mental health outcomes; (ii) prevalence of cannabis use disorder in the commonwealth including, but not limited to, protocols to ensure that individuals diagnosed with said disorder are not able to access medical marijuana cards; and (iii) impacts of public health interventions, including, but not limited to, warning labels and educational campaigns. The commission shall incorporate available data into the report, including, but not limited to, data obtained pursuant to subsection (b) of section 17 of chapter 94G of the General Laws. Not later than January 1, 2027, the commission shall submit its report and any recommendations for legislation to the clerks of the house of representatives and the senate and the joint committee on cannabis policy.

SECTION 58. Notwithstanding any general or special law to the contrary, the terms of all commissioners serving on the Massachusetts cannabis control commission shall terminate on the effective date of this act. Commissioners shall thereafter be appointed pursuant to section 223 of chapter 6 of the General Laws not later than 30 days after the effective date of this act; provided however, that the commissioner appointed by the attorney general shall serve an initial term of 2 years.



SECTION 59. The cannabis control commission shall conduct, or retain an outside expert in economic analysis to conduct, and publish a study on supply and demand in the cannabis market, including both the current legal and illegal markets. The study shall review: (i) current cannabis supplier trends; (ii) data on projected future trends of cannabis consumption; (iii) price sensitivity of marijuana consumers; (iv) access to capital for the creation and maintenance of legal cannabis business ventures in the commonwealth; and (v) current regulations on existing cannabis cultivation tiers. The study shall include recommendations for the appropriate number of licenses to enter the legal market each year based on current consumer demand. Not later than January 1, 2027, the commission shall submit a report of its study along with recommendations and any draft legislation to effectuate its recommendations to the clerks of the house of representatives and the senate and the joint committee on cannabis policy.

SECTION 60. The cannabis control commission shall conduct, or retain an outside expert to conduct, a study on the effects of the current marijuana excise tax rates established in chapter 64N of the General Laws on the sustainability of the cannabis industry. The study shall include, but not be limited to, the impact of the excise tax on: (i) consumer demand with regard to businesses licensed pursuant to chapters 94G and 94I of the General Laws; (ii) consumer demand for illicit cannabis and the size of the illicit cannabis market; (iii) the rates of marijuana related business closures; and (iv) businesses that have or could qualify for the Cannabis Social Equity Trust Fund established by section 14A of said chapter 94G. The study shall evaluate the impact of state taxes on the sale of cannabis in other states and any other relevant factors regarding the impact of the current excise tax on consumers and businesses in the commonwealth. Not later than January 1, 2027, the commission shall submit a report of its findings and any

524 recommendations for legislation to the clerks of the house of representatives and the senate and  
525 the joint committee on cannabis policy.

526         SECTION 61. Notwithstanding any general or special law to the contrary, all property,  
527 including, but not limited to, buildings, facilities, cash, equipment, books, papers, memoranda,  
528 files, maps, plans, records, documents, property held in trust and other property, both personal  
529 and real, of whatever description pertaining to the operation of the cannabis control commission  
530 that are in the possession or under the control of the commission or employee of the commission  
531 as of the effective date of this act shall remain under the control of the commission following the  
532 effective date of this act and all duly existing contracts, leases or obligations of the commission  
533 that are in effect as of the effective date of this act shall remain in effect following the effective  
534 date of this act. The commission may exercise all rights and enjoy all interests conferred upon it  
535 by any previously executed contracts or obligations. No existing right or remedy held or granted  
536 by the commission that is not expressly affected by this act shall be lost, impaired rendered void  
537 or affected by this act; provided, however, that in the case of collective bargaining agreements,  
538 any obligations under such agreements shall expire on the stated date of expiration in such  
539 agreements.

540         SECTION 62. The cannabis control commission shall, in consultation with medical  
541 experts and appropriate state agencies and departments including the department of public  
542 health, the department of agricultural resources, the department of revenue and the alcoholic  
543 beverages control commission, conduct a study and develop recommendations regarding the  
544 effective regulation of the hemp-derived cannabinoid market, which shall include, but not be  
545 limited to: (i) ongoing federal law and other statutory or regulatory changes; (ii) licensing  
546 conditions; (iii) testing requirements and standards; (iv) appropriate age requirements and other

547 safeguards against underage access; (v) regulations for potential retail sales and taxation; and (vi)  
548 optimal procedures in other states that have undertaken regulation of ingestible hemp products.  
549 Not later than September 15, 2026, the commission shall publish the results of the study on its  
550 website and submit a copy to the clerks of the senate and house of representatives and to the joint  
551 committee on cannabis policy.